



File No.: EXP202307756

RESOLUTION OF

PROCEEDING OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 30, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against a person identified as A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

"This person installed a digital peephole on their door more than a year ago, which is located less than two meters from mine, because they had an altercation with my wife (...) which is understood to record (...)"—file No. 1—.

A photograph and an attached video are provided, which certify the presence of installed on the main access door to the respondent's residence (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On August 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The notification of the aforementioned initiation agreement was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being subject to notification in due time and form as certified by the Official Postal Service.

FIFTH: On February 21, 2025, a written statement of allegations was received from the legal representative of the respondent, stating the following in law:

"Second. That Ms. A.A.A. has been enduring assaults, insults, and constant threats from her neighbors at door two for the past four years, primarily from her neighbor, which has led her to file several complaints with the National Police of ***LOCALIDAD.1, (Valencia), including:

- Report No.: (...) dated December 23, 2021.- complaint against her neighbor for insults, threats, and derogatory remarks due to her sexual orientation. This is certified with the report as document No. 2.
- Report No.: (...) dated April 7, 2022.- complaint against her neighbor for insults and violation of the restraining order imposed by the ***COURT A.A.A. of ***LOCALIDAD.1, (Valencia). Minor Offenses Trial (...). This is certified with the report as document No. 3.

Third. That the situation in which she lives, caused by her neighbors, has resulted in a constant state of unease, leading her to fear for her life, which has necessitated psychological help. Given this circumstance and upon the advice of the police, she decided, for her own personal safety, to install a recording digital peephole on her door. She previously requested permission from the co-owners for its installation.

The co-owners unanimously agreed to authorize the installation of the digital peephole on the door (...). This is certified with the minutes of the Extraordinary General Meeting of the homeowners' association, Portal de Valencia 14, dated March 13, 2023, as document No. 8. (...)

Sixth. -Reason for the installation of the digital peephole is for the personal safety of XXX due to the fear that her life may be in danger from the constant threats and insults made by her neighbor from door 2, which have resulted in the complaints and judicial convictions against her, as detailed in allegation SECOND.

REQUESTS that this document, along with its documents and copies, be considered presented, that it be admitted, and, in merit to its content, that the allegations made therein be considered formulated in due time and form and that it be agreed that there has been no violation of Article 5.1c) of the GDPR,

proceeding to archive the file.”

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 30/05/23, through which the presence of is reported, which is understood to record her comings and goings from her property.

Second. The presence of installed for personal security reasons by A.A.A. with NIF ***NIF.1 is certified.

Third. Various conflicts between the parties have been proven, which have been subject to adjudication in the ***COURT B.B.B. (**LOCALIDAD.1)-Minor Offenses Trial No. (...).

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Fourth. It is certified that the Community of Property Owners is aware of the existence of conflicts in the property, authorizing the installation of the digital peephole. This is evidenced by the copy of the Minutes of the Extraordinary General Meeting dated 13/03/23, where the situation is recorded, and it is unanimously agreed by those present to authorize the presence of the peephole.

Fifth. It is certified that there is an informative sign for the relevant legal purposes, indicating that this is a area, a fact supported by document No. 9 (Annex written allegations dated 21/02/25).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Alleged Breach of Obligation. Legality of Processing

In this case, we proceed to analyze the complaint dated 30/05/23, through which the following is reported: "installation of digital peephole" which allegedly affects their personal sphere and/or privacy in the alleged monitoring of entries/exits of the property.

The facts initially concern the presence of a digital peephole installed on the access door to the dwelling of the property indicated by the complainant.

There is a digital device that incorporates a camera and a screen that allows observing who is on the other side of the door, its use being necessary for certain disabled individuals or for security reasons of the property, as it allows comfortably viewing who is ringing the bell or at the door of the property.

The Instruction 1/2006, of November 8, from the Spanish Agency for Data Protection, regarding the processing of personal data for surveillance purposes through camera systems or video cameras, in its Article 1 "in fine" states: "References in this Instruction to video cameras and cameras shall also be understood to refer to any analogous technical means and, in general, to any system that allows the treatments provided for therein."

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements demanded by the applicable

regulations.

According to STS—Civil Chamber, Section 1, November 7, 2019 (No. 600/2019)—in accordance with the doctrine of the Constitutional Court, it recalls that "the constitutionality of any restrictive measure of fundamental rights is determined by the strict observance of the principle of proportionality."

III

On February 21, 2025, a written statement of allegations was received from the designated legal representative, alleging "personal security reasons" of the respondent due to the repeated behaviors of the complainant's neighbor.

It is the maintained criterion of this Agency that there is no tolerance for uncivil or vandalistic acts of any nature (e.g., damage, threats, coercion, etc.) so that a restrictive interpretation of the norm results in a double punishment for the affected party, who, being deprived of the possibility of recording, suffers simultaneously new aggressions that are sometimes carried out furtively.

In support of their claim, the respondent provides documentary evidence (Annex I) that certifies the filing of various complaints with the Police due to behaviors as described, which affect the personal freedom of the respondent and demonstrate a against the actions of the owner(s) across the street. Additionally, an Order from the ***COURT B.B.B. (**LOCALITY.1) is provided regarding a Minor Offense Trial in which it is agreed to "Impose on Ms. B.B.B. the (...) to Ms. A.A.A. within a radius of five meters, to her (...)".

The presence of a digital peephole, the installation of which is not denied by the respondent, is due to the reason stated, the continuous threats made by the referenced neighbor, which have been subject to criminal reproach through Judgment No. (...) of

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Date 05/07/22 in which the existence of of Article 171.7 of the Penal Code is considered accredited.

In this specific case, it is considered that the digital peephole serves a deterrent function against the aggravation of conflicts between the parties, being limited to the area that affects both parties, as they are neighbors door to door, with the risks that this entails.

The effect of the same is limited to a confined space, such as the landing area, so the impact of the measure is the minimum necessary to fulfill its purpose, which is none other than to prevent the continuous situations described.

Regarding the data that could be captured by the referenced device, it is important to emphasize that in the event of any criminal act being perpetrated (e.g., threats, coercion, property damage, etc.), the images must be forwarded to the Security Forces or to the nearest Investigating Court to the place of the events, which will be competent to analyze and assess their content.

Without further considerations, it is worth remembering that fundamental rights are not absolute rights (e.g., STC 11/1981, April 8, STC 62/1982, October 15, STC 37/1989, Fj 7º, to cite a few references) where they may yield to other rights equally deserving of protection, as long as the principle of proportionality is observed, as is the case presented.

Finally, a copy of the Minutes of the Extraordinary General Meeting dated 13/03/23 is provided, where in the the statement of the respondent to install a by police recommendation is recorded, due to the possibility of malicious acts against her person, having been voted on urgently by the owners in a positive manner.

The Community of property owners is aware of the described situation, with internal knowledge and acceptance of the presence of the device, even being oriented in such a measure in connivance with the Security Forces of the State close to the place of the events, as a necessary measure to prevent future harms.

IV

Having examined the allegations and evidence provided and taking into account the context of the case, it is considered that the presence of the is a measure proportional to the case presented, fulfilling a clear deterrent function against situations that affect the personal freedom of the respondent, all of

which justify the permanence of the device in the installed location.

It is recalled the significance of the rights at stake, as well as the rigor in the work of this body, which must avoid the instrumentalization of the same, in the face of facts related to criminal prosecutions, which even determine to the affected person's home.

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Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no administrative infringement has been accredited in the matter at hand.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1403-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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